

tion, *nemo in dicta civitate, &c.* As to the second point they strongly held, that the said latter clause, "and where that in the dioceses of England, out of London," &c. this clause, according to the words, extends only to places out of London, and so much the rather, because they provided for London before, *nemo in dicta civitate, &c.* Also the makers of the Act put a distinction betwixt those who shall be licensed to practise physic in London, &c. for they ought to have the admittance and allowance of the president and college in writing, under their common seal: but he who shall be allowed to practise physic throughout England, out of London, ought to be examined and admitted by the president and three of the elects; and so they said, that it was lately adjudged in the King's Bench, in an information exhibited against the said Dr. Bonham for practising physic in London for divers months. As to the third point they said, that for his contempt and disobedience before them at their assembly in their college, they might well commit him to prison; for they have authority by the letters patent and Act of Parliament, and therefore for a contempt or misdemeanor before them, they may commit him. Also the Act of (d) 1 M. has given them power to commit them for every offence or disobedience contrary to any article or clause contained in the said grant or Act. But there is an express negative article in the said grant, and ratified by the Act of 14 H. 8 [116 b] *quod nemo in dicta civitate, &c. exerceat, &c.* and the defendants have pleaded, that the plaintiff had practised physic in London by the space of one month, &c. and therefore the Act of 1 Mariæ has authorised them to imprison him in this case; wherefore they concluded against the plaintiff. But it was argued by Coke Chief Justice, Warburton and Daniel Justices at the Common Pleas, to the contrary. And Daniel, Justice, conceived that a doctor of physic, of the one university or the other, &c. was not within the body of the Act, and if he was within the body of the Act, that he was excepted by the said latter clause: but Warburton argued against him for both the points (A); and the Chief Justice did not speak to those two points, because he and Warburton and Daniel agreed, that this action was clearly maintainable for two other points, and therefore in this action the Chief Justice omitted to speak to the said two points: but to two other points he and the said two other justices, Warburton and Daniel, did speak, *sc.* 1. Whether the censors have power, for the causes alleged in their bar, to fine and imprison the plaintiff. 2. Admitting that they have power to do it, if they had pursued their power. But the Chief Justice, before he argued the points in law, because much was said in commendation of the doctors of physic of the college in London, and somewhat (as he conceived) in derogation of the dignity of the doctors of the said universities, he first attributed much to the doctors of the said college in London, and confessed that nothing was spoke in their commendation which was not due to their merits: but yet that no comparison was to be made between that private college, and either of the Universities of Cambridge and Oxford, no more than between the father and his children, or between the fountain and the small rivers which descend from it; the university is *alma mater*, from whose breasts those of that private college have sucked all their science and knowledge (which I acknowledge to be great and profound) but the law saith, *erubescit lex filios castigare parentes*: the university is the fountain, and that and the like private colleges are *tantum rivuli*, which flow from the fountain, *et melius est petere fontes quam sectari rivulos*. Briefly, *Academia Cantabrigiæ et Oxoniæ sunt Athenæ nostræ nobilissimæ regni soles, oculi et animæ regni, unde religio, humanitas, et doctrina in omnes regni partes uberrimè diffunduntur*: but it is true, *nunquam sufficiet copia laudatoris, quia nunquam deficiet materia laudis*; and, therefore, those universities exceed and excel all private colleges, *quantum inter viburna cupressus*. And it was observed that King Henry VIII. in his said letters patent and the King and

(d) 1 Mar. c. 9. Rastal. Physician 7. Lit. Rep. 109. 172, 173, 212, 213. 215. 248, 249. 350, 351. 1 Jones 263. Cr. Car. 257. Cro. Jac. 121. 4 Inst. 251. 2 Brownl. 257. 262. 265, 266. Cart. 115.

(A) A graduate doctor of one of the universities cannot practise physic within London, or seven miles round, without licence from the college of physicians. *College of Physicians v. Dr. West*, 10 Mod. 353. *College of Physicians v. Levett*, 1 Ld. Raym. 472.